

5	Cordova vs. American Honda Motor Co., Inc. 30-2023-01358135	There is no full written tentative ruling in this matter. Instead, the court provides the following summary tentative ruling and will hear from the parties or their counsel at oral argument. <u>Motion to Enforce Settlement</u> Plaintiff Maria Cordova's Motion to Enforce Settlement is GRANTED. <u>Standard to Enforce Settlement</u> <u>Standard for Entry of Judgment Pursuant to Settlement Agreement / Enforcement of Settlement Agreement</u> Civil Procedure Code section 664.6 provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).) As the Court of Appeal has explained: The purpose of section 664.6 is "to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." "If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement." (<i>Greisman v. FCA US, LLC</i> (2024) 103 Cal.App.5th 1310, 1321, quoting <i>Wedington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 809; see also <i>Eagle Fire and Water Restoration, Inc. v. City of Dinuba</i> (2024) 102 Cal.App.5th 448, 457 ["section 664.6 provides an expedited procedure for enforcing the parties' settlement agreement"]; <i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182 ["Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement

		agreement by entering judgment pursuant to the terms of the settlement.”].) Pursuant to Section 664.6, “even though a settlement may call for a case to be dismissed, or the plaintiff may dismiss the suit of its own accord, the court may nevertheless retain jurisdiction to enforce the terms of the settlement, until such time as all of its terms have been performed by the parties, <i>if the parties have requested this specific retention of jurisdiction.</i>” (<i>Wackeen v. Malis</i> (2002) 97 Cal.App.4th 429, 439, italics original.) However, “[a] trial court cannot enforce a settlement under section 664.6 unless the trial court finds the parties expressly consented . . . to the material terms of the settlement.” (<i>Bowers v. Raymond J. Lucia Companies, Inc.</i> (2012) 206 Cal.App.4th 724, 732.) Thus, before granting a motion to enforce a judgment, the court must determine “whether the parties entered into a binding settlement agreement of all or part of a case.” (<i>In re Marriage of Assemi</i> (1994) 7 Cal.4th 896, 911.) In making this determination, “a trial court should consider whether (1) the material terms of the settlement were explicitly defined, (2) the supervising judicial officer questioned the parties regarding their understanding of those terms, and (3) the parties expressly acknowledged their understanding of and agreement to be bound by those terms.” (<i>Ibid.</i>) Plaintiff has offered sufficient admissible evidence that the Civil Procedure Code section 998 offer constituted a valid and binding settlement agreement of the entirety of the case, that both parties agreed to all material settlement terms, that the 998 offer and acceptance was signed by all parties’ counsel, and that the settlement agreement was made pending litigation.
--	--	--

		Defendant has not filed a timely opposition or response to the motion and thus, has waived any arguments regarding the motion. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Plaintiff shall give notice of this ruling.
6	Ragland vs. Wells Fargo Bank, N.A. 30-2023-01346326	There is no full written tentative ruling in this matter. Instead, the court provides the following summary tentative ruling and will hear from the parties or their counsel at oral argument. <u>Motions for Reconsideration</u> Plaintiff Sawyer Ragland's Motion for Reconsideration of AntiSLAPP Opposition to Non-Party Wells Fargo Bank, N.A. as Trustee is taken OFF CALENDAR. Plaintiff Sawyer Ragland's Motion for Reconsideration of Demurrer Opposition to Non-party Wells Fargo Bank, N.A. as Trustee is taken OFF CALENDAR. Code of Civil Procedure section 916 provides: Except as provided in Sections 917.1 to 917.10, inclusive, . . . the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order. (Code Civ. Proc., s 916, subd. (a).)